

TERMS AND CONDITIONS

1. DEFINITIONS

"Carrier" means the party on whose behalf this B/L has been signed.
"Goods" means the cargo accepted from the Shipper and includes any Container not supplied by or on behalf of the Carrier.
"Container" includes any container, trailer, transportable tank, flat or pallet.
"Merchant" includes the shipper, holder, consignee, the receiver of the Goods, any person owning or entitled to the possession of the Goods or this B/L and anyone acting on behalf of any such persons.
"Holder" means any person for the time being in possession of this B/L to whom the property in the Goods has passed on or by reason of the consignment of the Goods or the endorsement of this B/L or otherwise.
"Carriage" includes the whole or any part of the operations and services undertaken by the Carrier in respect of Goods.
"Combinet Transport" arises if the Place of Receipt and/or the Place of Delivery are indicated on the face hereof in the relevant spaces.
"Port to Port Shipment" arises if the Carriage called for by this Bill of Lading is not Combinet Transport.
"Freight" includes all charges in the Carriage in accordance with the applicable Tariff and this Bill of Lading.
"Hague Rules" means the provisions of the International Convention for the Unification of certain rules relating to Bills of Lading signed at Brussels on 25th August 1924 and includes the amendments by the Protocol signed at Brussels on 23rd February 1968, but only if such amendments are compulsorily applicable to this Bill of Lading.

2. CARRIER'S TARIFF

The terms of the Carrier's applicable Tariff are incorporated herein. Copies of the relevant provisions of the applicable Tariff are obtainable from the Carrier upon request. In the case of inconsistency between this B/L and the applicable Tariff, this B/L shall prevail.

3. WARRANTY

The Merchant warrants that in agreeing to the terms hereof he is, or has the authority of the person owning or entitled to the possession of the goods and this B/L. The shipper warrants that the particulars relating to the goods as set out hereof have been checked by him and that such particulars and any other particulars furnished by him or on his behalf are correct. The shipper shall indemnify the Carrier against all loss, damage and expenses arising or resulting from inaccuracies in or inadequacy of such particulars.

4. SUB-CONTRACTING AND INDEMNITY

The Carrier shall be entitled to sub-contract on any terms the whole or any part of the carriage, loading, unloading, storing, warehousing, handling and any and all duties whatsoever undertaken by the Carrier in relation to the Goods.
(i) The Merchant undertakes that no claim or allegation shall be made against any servant, agent or sub-contractor of the Carrier which imposes or attempts to impose on them or any of them any liability whatsoever in connection with the Goods, and if any such claim or allegation should nevertheless be made to indemnify the Carrier against all consequences thereof without prejudice to the foregoing, any such person shall have the benefit of all provisions herein benefitting the Carrier, as if such provisions were expressly for their benefit and in entering into this contract, the Carrier, to the extent of those provisions, does so not only on its own behalf, but also as agent and trustee for such person.

(3) The expression "sub-contractor" in this clause shall include direct and indirect sub-contractors and their respective servants and agents.

(4) The Merchant undertakes that no claims or allegations in respect of the Goods shall be made against the Carrier or any Person other than in the terms of accordance with the terms and conditions of this Bill of Lading which imposes or attempts to impose on the Carrier any liability whatsoever in connection with the Goods or the Carriage or the Goods or not arising out of negligence on the part of the Carrier and, if such claim or allegation shall nevertheless be made to indemnify against all consequences thereof.

5. CARRIER'S RESPONSIBILITY (Port to Port Shipment)

(1) If the Carriage is Port to Port, the liability (if any) of the Carrier for loss or damage to the Goods occurring from and during loading onto any seagoing vessel up to and during discharge from the vessel or from another seagoing vessel into which the Goods have been transhipped shall be determined in accordance with any national law making the Hague Rules compulsory applicable to this Bill of Lading or in accordance with the US COGSA if applicable, pursuant to Clause 26 hereof or in any other law in accordance to the Hague Rules. The Carrier shall be under no liability whatsoever for loss of or damage to the Goods however occurring, if such loss or damage arises prior to loading onto or subsequent to discharge from the vessel. Notwithstanding the above in case and to the extent that any applicable compulsory provisions to the contrary, the Carrier shall have the benefit of every right defense and liberty contained in the Hague Rules or the US COGSA if applicable pursuant to Clause 26 hereof as applied by this clause during such additional compulsory period of reasonability, notwithstanding that the loss or damage did not occur at sea.

6. CARRIER'S RESPONSIBILITY (Combinet Transport)

If Carriage is Combinet Transport, the Carrier undertakes to perform and/or in his own name to procure performance of the Carriage from the Place of Receipt of the Port of Loading, whichever is applicable, to the Port of Discharge or the Place of Delivery, whichever is applicable, and save as is otherwise provided for in this Bill of Lading, the Carrier shall be liable for loss or damage occurring during the Carriage only to the extent set out below.

(1) If the stage of the Carriage during which loss and damage occurred is not known

- (a) Exclusions if the stage of the carriage during which loss and damage occurred is not known, the Carrier shall be relieved of liability for any loss or damage if such loss or damage is caused by:
- (i) An Act or omission of the Merchant.
 - (ii) Insufficiency, loading, stowage or loading of the Goods by or on behalf of the Merchant.
 - (iii) Inherent vice of the Goods
 - (iv) Strike, lock-out, stoppage of restraint of labour, from whatever cause, whether partial or general.
 - (v) A Nuclear incident
 - (vi) Any cause of event which the Carrier could not avoid and the consequences whereof he could not prevent by the exercise of reasonable diligence.
- (vii) Compliance with instructions of any Person entitled to give them.
- (b) Burden of Proof
- The burden of proof that the loss or damage was due to one or more of the causes or events specified in this Clause 6(1) shall rest upon the Carrier. If the Carrier establishes that, in the circumstances of the case the loss or damage could be attributed to one or more causes or the events specified in Clause 6(1)(a) (i)-(vi), (vii), it shall be presumed that it was so caused; the Merchant shall, however be entitled to prove that the loss or damage was not, in fact caused either wholly or partly by one or more causes or events.

(c) Limitation of Liability

Except as provided in Clauses 7(2), 7 (3) and 26, if Clause 6(1) operates, total compensation shall be in no circumstances whatsoever and howsoever arising except 2 SDRs per kilo of the gross weight of the Goods lost or damaged (SDR means Special Drawing Right as defined by the International Monetary Fund)

(2) If the stage of the Carriage during which loss and damage occurred is known

- (a) anything provided for in Clause 6(1) and subject to Clauses 15 and 16, it is known during which stage of the Carriage the loss or damage occurred, the liability of the Carrier in respect of such loss or damage shall be determined:
- (i) by the provisions contained in any international convention of national law; cannot be departed from by private contract to the detriment of the Merchant; and
 - (ii) would have applied if the Merchant had made a separate and direct contract with the Carrier in respect of the particular stage of the Carriage during which the loss or damage occurred and received as evidence thereof any particular convention or national law applicable; or
 - (b) If no international convention of national law notwithstanding would apply by virtue of Clause 6(2)(a), by the Hague Rules, Articles 1-8 inclusive if the loss or damage is known to have occurred during waterborne carriage; or
 - (c) By the provisions of Clause 6(1) if the provisions of Clause 6(2)(a) and (b) above do not apply.
- For the purpose of Clause 6(2) references in the Hague Rules to carriage by sea shall be deemed to include references to all waterborne Carriage and the Hague Rules be construed accordingly.

(3) If the Place of Receipt or Place of Delivery is not named on the face hereof

- If the Place of Receipt is not named on the face hereof the Carrier shall be under no liability whatsoever for loss of or damage howsoever occurring, if such loss or damage arises prior to loading onto the vessel.
- If the Place of Delivery is not named on the face hereof the Carrier shall be under no liability whatsoever for loss of or damage howsoever occurring, if such loss or damage arises subsequent to discharge from the vessel.

(4) Notice of loss or damage

The Carrier shall be deemed prima facie to have delivered the Goods as described in this Bill of Lading unless notice of loss or damage to the Goods, indicating the general nature of such loss or damage shall have been given in writing to the Carrier or to his representative at the place of Delivery (or the Port of Discharge if no Place of Delivery is named on the face hereof), before or at the time of removal of the Goods into the custody of the Person entitled to delivery thereof under the Bill of Lading or, if the loss or damage is not apparent, within three working days thereafter.

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(5) Unless Clause 25 or 26 applies, the Carrier shall be discharged of a liability whatsoever in respect of the Goods unless suit is brought thereof given to the Carrier within nine months after delivery of the Goods or the date when the Goods should have delivered.

7. SUNDRY LIABILITY PROVISIONS

- (1) Basis of Compensation
Compensation should be calculated by reference to the Goods at the place and time they are delivered. For the purpose of determining the extent of the Carrier's liability for loss of or damage to the Goods the sound value of the Goods is agreed to the invoice plus freight and insurance if paid.
- (2) Hague Rules Limitation
If the Hague Rules are applicable by national law, the liability of the Carrier shall in no event exceed the limit provided in the applicable national law, if the Hague Rules are applicable otherwise than by national law in determining the liability of the Carrier, the liability shall in no event exceed 666 SDR per package or unit.
- (3) Ad valorem
The Merchant agrees and acknowledges that the Carrier has no knowledge of the value of the Goods and that higher compensation than the provided for in this Bill of Lading may not be claimed unless with the consent of the Carrier the value of the goods declared by the Shipper prior to the commencement of the Carriage is stated on this Bill of Lading and extra Freight paid, if required in this case the amount of the declared value shall be substituted for the limits laid down in this Bill of Lading. Any partial loss or damage shall be adjusted pro rata on the basis on such declared value.
- (4) Delay
The Carrier does not undertake that the Goods shall arrive at the Port of Discharge or the Place of Delivery at any particular time or to meet any particular market use and the Carrier shall in no circumstances whatsoever and howsoever arising be liable for direct, indirect or consequential loss or damage caused by delay if this exemption for liability shall be invalid under mandatory law, the liability of the Carrier shall be limited to the value of freight or, when the stage when delay occurred is known, to the freight applicable to the relevant stage of transport.
- (5) Scope of Application
 - (a) The terms of conditions of this Bill of Lading shall at all times govern all responsibility of the Carrier in connection with or arising out of the supply of the Container to the Merchant, not only during the Carriage, but also during the periods prior to and/or subsequent to the Carriage.
 - (b) The rights, defenses, limitations and liberties of whatsoever nature provided for in this Bill of Lading shall apply in an action against the Carrier for loss or damage or delay, howsoever occurring and whether the action be founded in contract or in tort.
 - (c) Save as is otherwise provided for in this Bill of Lading the Carrier shall be in no circumstances whatsoever and howsoever arising be liable for direct or indirect or consequential loss or damage or loss of profits.
- (6) Inspection by Authorities
If by order of the authorities at any place, Container has to be opened for the Goods to be inspected, the Carrier will not be liable for any loss or damage incurred as a result of any opening, unpacking, inspection or repacking. The Carrier shall be entitled to recover the cost of such opening, unpacking, inspection and repacking from the Merchant.

8. SHIPPER- PACKED CONTAINERS

- (1) If a Container has not been filled, packed, stuffed or loaded by the Carrier, the latter shall not be liable for loss of or damage to the contents and the Merchant shall indemnify the Carrier against any injury, loss, damage, liability or expense incurred by the Carrier if such injury, loss, damage, liability or expense has been caused by:
 - (a) the manner in which the Container has been filled, packed, stuffed or loaded; or
 - (b) the unsuitability of the contents for carriage in Containers; or
 - (c) the unsuitability or defective condition of the Container which would have been apparent upon reasonable inspection by the Merchant at or prior to the time the Container was filled, packed, stuffed or loaded.
- (d) Packing refrigerated Goods that are not at the correct temperature for Carriage.

(2) The Shipper is responsible for the packing and sealing of all Shipper-Packed Containers and if a Shipper-Packed Container is delivered by the Carrier with its original seal at affixed by the Shipper intact, the Carrier shall not be liable for any shortage of Goods ascertained by delivery.

(3) The Merchant shall indemnify the Carrier any loss, damage, liability or expense whatsoever and, howsoever arising caused by one or more of the matters referred to in Clause 8(1), save (c), the Merchant shall not be liable to indemnify the Carrier in respect thereof unless the proviso referred to in Clause applies.

9. INSPECTION OF GOODS

The Carrier or any person to whom the Carrier has sub-contracted the Carriage or any Person authorized by the Carrier shall be entitled, but under no obligation to open any Container or package at any time and to inspect the Goods.

10. CARRIAGE AFFECTED BY CONDITION OF GOODS

It appears at any time that, due to their condition, the Goods cannot safely or properly be carried or carried further, either at all or without incurring any additional expense or taking measure(s) in relation to the Container or the Goods the Carrier may without notice to the Merchant (but as his agent only) take any measure(s) and/or incur any additional expense to carry or to continue the Carriage thereof and/or sell or dispose of the Goods and/or abandon the Carriage and/or store them ashore or afloat, under cover or in the open, at any place, whichever the Carrier, in his absolute discretion, considers most appropriate, which abandonment storage sale or disposed shall be deemed to constitute due delivery under this Bill of Lading. The Merchant shall indemnify the Carrier against any additional expense so incurred.

11. DESCRIPTION OF GOODS

(1) This B/L shall be prima facie evidence of the receipt by the Carrier in apparent good order and condition except as otherwise noted of the total number of Containers or other packages or units enumerated hereof. Proof to the contrary shall not be admissible when this B/L has been transferred to a third party acting in good faith;

- (2) No representation is made by the Carrier as to the weight, contents, measure, quantity, quality, description, condition, marks, numbers or value of the Goods and the Carrier shall be under no responsibility whatsoever in respect of such description or particulars;
- (3) Unless otherwise stated, the herein described container (s) is/ are supplied by the vessel and the signing of this B/L is not a surrender of the ownership of the container.

12. SHIPPER'S RESPONSIBILITY

- (1) The Shipper Warrants to the Carrier that the particulars relating to the Goods as set out hereof have been checked by the Shipper on receipt of this B/L and that such particulars and any other particulars furnished by or on behalf of the Shipper are correct;
- (2) The Shipper Shall indemnify the Carrier against all loss, damage and expenses arising or resulting from inaccuracies in or inadequacy of such particulars; the right of the Carrier to such indemnity shall in way limit his responsibility and liability under this B/L to any person other than the Shipper.

13. FREIGHT AND CHARGES

- (1) Freight and charges shall be deemed fully earned on receipt of the Goods by the Carrier and shall be paid and non-returnable in any event;
- (2) The Merchant's attention is drawn to stipulations concerning currency in which the freight charges are to be paid, rate of exchange devaluation and other contingencies relative to freight and charges in the applicable Tariff;
- (3) The freight has been calculated on the basis of particulars furnished by or on behalf of the Shipper. The Carrier may at any time open any Container or other package or unit in order to reweigh, remeasure or revalue the contents and if the particulars furnished by or on behalf of the Shipper are incorrect, it is agreed that a sum equal to either five times the difference between the correct freight and the freight charged or to double the correct freight less the freight charged whichever sum the smaller, shall be payable as liquidated damages to the Carrier;

- (4) Full freight hereunder shall be due and payable at the place where this B/L is issued, by the Shipper in cash without deduction on receipt of the Goods or part thereof by the Carrier for shipment even if stated in this B/L to be payable elsewhere and shall be deemed to have been fully earned upon such receipt of such Goods. All charges due hereunder together with freight (if not paid at the port of loading as aforesaid) shall be due from and payable on demand by the Shipper. Consignee, Owner of the Goods or Holder of this B/L (who shall be jointly and severally liable to the Carrier therefor) at such port or place as the Carrier may require, vessel or cargo lost or not lost from any cause whatsoever the Shipper.

14. LIEN

The Carrier shall have a lien on the Goods and any documents relating thereto for all sums payable to the Carrier under this contract and for general average contributions to whomsoever due. The Carrier shall also have a lien against the current holder on the Goods and any documents relating thereto for all sums due from him to the Carrier under any other contract in any event any lien shall extend to cover the cost of recovering the sums due and for that purpose the Carrier shall have the right to sell the Goods by public auction or private treaty without notice to the Merchant.

15. OPTIONAL STOWAGE

The Goods may be stowed by the Carrier in Containers or similar articles of transport used to consolidate Goods;
Goods stowed in Containers other than open flats or pallets whether by the Carrier or the Merchant, may be carried on or under deck without notice to the Merchant under deck shall participate in general average and shall be deemed to be with in the definition of goods for the purposes of the Hague Rules Such Goods (other than livestock) whether Carried on deck or under deck shall participate in general average and shall be deemed to be with in the definition of goods for the purpose of Hague Rules.

16. DECK CARGO AND LIVESTOCK

Goods (not being Goods stowed in Containers of other open flats or pallets) which are stated herein to be carried on deck and livestock whether or not carried on deck, are carried without responsibility on the part of the Carrier for loss or damage of whatsoever nature arising during carriage by sea whether caused by unseaworthiness or negligence or any other cause whatsoever. The Carrier must obtain express approval from the Merchant concerned prior to carrying such Goods on deck

17. METHODS AND ROUTES OF TRANSPORTATION

- (1) The Carrier may at any time and without notice to the Merchant:
 - (a) use any means or transport or storage whatsoever;
 - (b) transfer the Goods from one conveyance to another including trans-shipping or carrying the same on another vessel than the vessel named hereof;
 - (c) proceed by any route in his discretion (whether or not the nearest or most directly customary or advertised route) and proceed to or stay at any place or port whatsoever in and more often and in any order than is herein provided;
 - (d) load and unload the Goods at any place or port (whether or not such place or port is named hereof as the Port of Loading or Port of Discharge) and store the Goods any such place or port;
 - (e) comply with any orders or recommendations given by any government or authority or any person or body acting or purporting to act as or on behalf of such government or authority or having under the terms of the insurance on the conveyance employed by the Carrier the right to give orders or directions.
- (2) The liberties set out in sub-clause (1) may be invoked by the Carrier for any purpose whatsoever including undergoing repairs towing or being towed, adjusting instruments, drydocking and assisting vessels in all situations, and anything done in accordance with sub-clause (1) or any delay arising therefrom shall be deemed to be within the contractual carriage and shall not be a deviation.

18. MATTERS AFFECTING PERFORMANCE

- (1) If at any time the performance of the contract evidenced by this B/L is or is likely to be affected by any hindrance risk delay, difficulty or disadvantage of whatsoever nature which cannot be avoided by the exercise of reasonable endeavors, the Carrier (whether or not the Transport has commenced) may without notice to the Merchant treat the performance of this contract as terminated and place the Goods or any part of them at the Merchant's disposal at any port or place whatsoever which the Carrier or Master may consider safe and advisable in the circumstances, whereupon the responsibility of the Carrier in respect of such goods shall cease. The Carrier shall nevertheless be entitled to full freight and charges on Goods received for transportation and the Merchant shall pay any additional costs of carriage to and delivery and storage at such port or place.
- (2) The circumstance referred to in sub-clause (1) above shall include, but shall not be limited to those caused by the existence or apprehension of war declared or undeclared, hostilities, warfare or belligerent acts or operation, riots, civil commotions, or other disturbances, closure of obstructions, in or danger to any canal blockade of port or place or interdict or prohibition of or restriction on commerce or trading, quarantine, sanitary, or other similar regulations or restrictions or other circumstances of whatsoever nature or kind which may affect the performance of the contract or the operation of the Carrier or his sub-contractors, congestion of port, wharf, sea terminal or any other place shortage, absence or obstacles of labor or facilities for loading, discharge delivery or other handling of the Goods, epidemics, pandemic or diseases, bad weather, shallow water ice landside or other obstacle in navigation or haulage.

19. DANGEROUS GOODS

- (1) The Merchant undertakes not to tender for transportation any Goods which are of a dangerous, inflammable radioactive or damaging nature without previously giving written notice of their nature to the Carrier and marking the Goods and the Container or other covering on the outside as required by any laws or regulations which may be applicable during the carriage. The Carrier or the Master may however, in their absolute discretion reject any such Goods.
- (2) If the requirements of sub-clause (1) are not complied with, the Goods may at any time or place be unloaded, destroyed, or rendered harmless without compensation and the Merchant shall indemnify the Carrier against all loss, damage or expense arising out of the Goods being tendered for transportation or handled or carried by the Carrier. Further the Carrier shall be under no liability to make any general average contribution in respect of such Goods.

If the Goods of a dangerous, inflammable, radioactive or damaging nature, which were tendered in compliance with sub clause (1) shall become a danger to the vessel, cargo or any other property or person, such Goods may in like manner be unloaded, destroyed or rendered harmless without compensation and the Merchant shall indemnify the Carrier against all loss, damage or expense which the Carrier could not avoid by the exercise or reasonable diligence but incurred as a result of the carriage of such goods.

20. NOTIFICATION AND DELIVERY

- (1) Any mention in this B/L of parties to be notified of the arrival of the Goods is solely for information of the Carrier, and failure to give such notification shall not involve the Carrier in any liability nor relieve the merchant of any obligation hereunder.
- (2) The Merchant shall take delivery of the Goods within the time provided for in the Carriers applicable Tariff.
- (3) If the Merchant fails to take delivery of the Goods or part of them in accordance with this B/L, the Carrier may, without notice, un-stow the Goods or that part thereof and/or store the Goods or that part thereof ashore, afloat, in the open or under cover. Such storage shall constitute due delivery hereunder, and thereupon all liability whatsoever of the Carrier in respect of the Goods or that part thereof shall cease.
- (4) The Merchant's attention is drawn to the stipulation concerning free storage and demurrage contained in the Carrier's applicable Tariff, which is incorporated in this B/L.
- (5) The Carrier may in his absolute discretion receive the Goods as full container load and deliver them as less than Full Container Load and/or as split delivery of the Goods to more than one receiver. In such event the Carrier shall be liable for any shortage, loss damage or discrepancies of the Goods, which are found upon unpacking of the Container.
- (6) The Carrier may in his absolute discretion receive the Goods as Less than Full Container Load and deliver them as Full Container Load. In such event the Carrier shall not be liable for any shortage, loss damage or discrepancies of the Goods, which were not apparent at the time of such delivery provided that he shall have exercised ordinary care in packing the Containers. If the Merchant fails to take delivery of the Goods or part of them in stipulations concerning free.

21. FCL MULTIPLE BILL OF LADING

- (1) Goods will only be delivery in a Container to the Merchant if all Bills of Lading in respect of the content of the Container have been surrendered authoring delivery to a single Merchant at a single Place of Delivery. In the event that this requirement is not fulfilled, the Carrier may unpack the container and in respect of the Goods for which Bill of Lading has been surrendered, deliver them to the Merchant on an FCL basis. Such delivery will constitute due delivery hereunder, but will only be effected against payment by the Merchant of LCL Service Charges and any charge appropriate to LCL Goods (as laid down in the Tariff) together with the actual costs incurred for any additional services rendered.
- (2) If this is an FCL Multiple Bill of Lading (as evidence by the qualification of the tally acknowledged hereof to the effect that it is (One of part cargoes in the Container), then the Goods detailed overleaf are said to comprise part of the contents of the Container indicated. If the total Goods within the Container consists of bulk Goods or unappropriated or is or becomes mixed or unmarked or unidentifiable, the Holders of Bill of Lading relating to the Goods within the Container shall take delivery thereof (including any damaged portion) and bear any shortage in such proportion as the Carrier shall in his absolute discretion determine and delivery shall constitute due to delivery hereunder.

22. Fire

The Carrier shall not be responsible for any loss or damage to the Goods arising or resulting from fire occurring at any time, unless caused by the actual fault or privity of Carrier.

23. GENERAL AVERAGE

- (1) General average shall be adjusted at any port or place in the option of the Carrier in accordance with the York Antwerp Rules, 1974 provided that where and adjustment is made in damage and the law and practice of the United States of America or of any other country having the same similar law or practice the following clause shall apply:
 - (a) In the event of accident danger damage or disaster before or after the commencement of the voyage, resulting from any cause whatsoever, whether due to negligence or not for which, or for the consequence of which, the Carrier is not responsible by statute, contract or otherwise, the Goods and the Merchant shall contribute with the Carrier in general average to the payment of any sacrifices, losses or expenses of a general average nature that may be made or incurred and shall pay salvage and special charges incurred in respect of the Goods.
 - (b) If a salvage vessel is owned or operated by the Carrier, salvage shall be paid for as fully as if the said salvage vessel belonged to a third party. If the Carrier delivers the Goods without obtaining security for general average contributions, the Merchant, by taking delivery of the Goods, undertakes personal responsibility to pay such contributions and to provide such cash deposit or other security for the estimated amount of such contributions as the Carrier shall reasonably require.

24. BOTH-TO-BLAME COLLISION

The Both-to-Blame Collision Clause published by the Baltic and International Maritime Council is hereby incorporated into the Bill of Lading.

25. VARIATION OF THE CONTRACT ETC.

No servant or agent of the Carrier shall have power to waive or vary any term of this B/L unless such waiver or variation is writing and is specifically authorized or ratified in writing by the Carrier.

26. VALIDITY

In the event that anything herein contained is inconsistent with any applicable international convention or national law, which cannot be departed from by private contract, the provisions hereof shall to the extent of such inconsistency but no further be null or void.

27. LAW AND JURISDICTION

- (1) The Contract evidenced hereby or contained herein shall be governed by Singapore Law.
- (2) Any claim against the Carrier hereunder shall be determined by the Singapore courts to the exclusion of the jurisdiction of the courts of another country. The Carrier shall however be entitled to pursue any claim against the Merchant in Singapore or in any other jurisdiction in which the Merchant has assets.
- (3) Nothing herein shall prevent the parties to any claim and/or dispute under this Bill of Lading from agreeing to submit the claim and/or dispute to Singapore arbitration pursuant to the rules of the Singapore Chamber of Maritime Arbitration ("SCMA")

